

FEDERAL MARITIME COMMISSION

MOSES DAMISA, CLAIMANT

V.

TRANS ATLANTIC SHIPPING LLC, RESPONDENT

INFORMAL DOCKET NO.
1967(I)

ANSWER OF RESPONDENT

Respondent, Trans Atlantic Shipping L.L.C., (“TAS” or “Respondent”), by and through its undersigned counsel, hereby answers the above-captioned Complaint filed by Complainant Moses Damisa (“Damisa” or “Complainant”), as follows:

1. On information and belief, Respondent admits the allegations contained in paragraph I.
2. Respondent denies that its main office is located at 4907 International Parkway, Suite 1081, Sanford FL 32771. The other allegations contained in paragraph II are admitted.
3. Respondent denies the allegations contained in paragraph III.
4. Respondent denies the allegations contained in paragraph III.A.
5. Respondent denies the allegations contained in paragraph III.B.
6. Respondent denies the allegations contained in paragraph III.C.
7. Respondent denies the allegations contained in paragraph IV.
8. Respondent denies the allegations contained in paragraph V.
9. In response to paragraph VI, Respondent objects to the informal procedure.

WHEREFORE, Respondent request that the Complaint be dismissed in its entirety with costs and attorney’s fees awarded to Respondent.

AFFIRMATIVE DEFENSES

1. Complainant has failed to state a claim upon which relief can be granted.

2. Complainant's damages are limited to freight paid for transport covered by the bill of lading.
3. Complainant's claim is barred by the doctrine of unclean hands.
4. Complainant failed to mitigate its damages.

Dated: January 15, 2021

Respectfully submitted,

THE MOONEY LAW FIRM, LLC



Shanshan (Shannon) Liang, of-counsel

Counsel for Complainants

Trans Atlantic Shipping L.L.C.

Fla. Bar No. 112991

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2717 Neuchatel Drive

Tallahassee, FL 32303

Tel. 850-893-0670

RESPONDENT'S AFFIDAVIT

Pursuant to 46 CFR 502.304 (e) I **do not consent** to having above-numbered claim determined by the Small Claims Officer in accordance with subpart S (46 CFR 502) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission Review.

1-15-2021
(Date)

Stacey Noel
(Signed)

Exec. manager
(Capacity)

VERIFICATION

State of Florida, County of Lake, ss: Stacey Noel, being first duly sworn on oath deposes and says that he or she is Executive Manager (Title or Position) and is the person who signed the foregoing and agrees without qualification to its truth.

Subscribed and sworn to before me, a notary public in and for the State of Florida, County of Lake, this 15th day of January, 2021.

Matthew Rogers
Notary Public - State of Florida
My Commission Expires 02/16/2024
Commission No. GG 958664

(Seal) By Means of Physical Presence

[Signature]
(Notary Public)

02/16/2024
My Commission expires

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was sent to the Complainant via USPS Priority Mail at the address below:

3521 Shadowood Pkwy SE, Atlanta GA 30339

and

#220, 2400 Herodian Way SE, Smyrna GA 30080

/s/ Shanshan Liang
Shanshan Liang